

Additional security under clause 4.20 — writ dismissed by reference

High Court of Judicature at Allahabad · Division Bench · 21 March 2017 · Writ-C No. 25088 of 2014 · **Writ petition dismissed; reasons as in Writ-C No. 30898 of 2016 of even date.**

HEADNOTE

Challenge to additional security demanded under clause 4.20 of the U.P. Electricity Supply Code, 2005. Interim restraint granted in 2014 on the strength of a similar stay; the writ was dismissed in 2017 by adopting the order of even date in Writ-C No. 30898 of 2016.

FACTUAL SUMMARY

M/s Kumar Casting Pvt. Limited, an industrial consumer, challenged U.P. Power Corporation Ltd.'s demand notice for additional security under clause 4.20 of the U.P. Electricity Supply Code, 2005. It pointed to a 7 October 2009 interim stay in a similar petition by M/s Supreme Ceramics Ltd. On 1 May 2014 the Court connected the matter with WP(C) 51884 of 2009 and stayed the additional-security demand. A Chief Justice's Bench later dismissed the petition on 21 March 2017.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

additional-security

HOLDING

The writ challenging the licensee's demand for additional security under clause 4.20 of the U.P. Electricity Supply Code, 2005, is dismissed; the Court adopts the reasons in the order of even date in Writ-C No. 30898 of 2016. ¶ 1

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>M/s Supreme Ceramics Limited v. Paschimanchal Vidyut Vitran Nigam Ltd.</i> Writ Petition No. 51844 of 2009 (order dated 7.10.2009)			order dated 1.5.2014	Referred
<i>Order of even date in Writ-C No. 30898 of 2016</i> Writ-C No. 30898 of 2016			order dated 21.3.2017	Referred